

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Joint Motion to Shorten Mandate

Joint request

Filed June 18, 2026.

Leora Benton and Blue Cedar Compliance, Inc. jointly move to shorten the time for issuance of mandate from the June 15 opinion and judgment. The parties request issuance on June 22, 2026, if the court grants relief. The opinion affirms the narrow exclusion of Tessa Wynn's late declaration, vacates summary judgment on Benton's retaliation claim, and remands for further proceedings.

The parties understand that the ordinary rehearing period has not expired and that mandate would not otherwise issue on June 22. Each has conferred with its client about the mixed disposition and the consequences of accelerated issuance. Neither party intends to seek panel rehearing, rehearing en banc, or a stay of mandate. The requested shortening is mutual and is not presented as a concession about any disputed fact or legal analysis. An order from the court remains necessary; filing this motion alone does not release or issue mandate.

Counterfactual Joint Motion to Shorten Mandate

Good cause

Good cause exists because the remanded claim requires prompt district-court case management. The prior schedule anticipated trial before the appeal, and the parties must now address a new pretrial sequence, witness availability, and the treatment of discovery completed before judgment. Earlier return of jurisdiction will permit the district court to set a conference and determine those matters without waiting through periods that neither party plans to use.

The requested date also allows the clerk time to process the motion and prepare the opinion and judgment for transmission. The parties do not ask this court to supervise remand scheduling or decide whether any discovery should reopen. They ask only that the district court regain authority to consider those questions. The affirmed exclusion component will remain binding, while the vacated summary judgment will no longer prevent further proceedings. Accelerating mandate changes the effective date of that existing disposition, not its content.

Counterfactual Joint Motion to Shorten Mandate

Acknowledgments and limits

Benton accepts that shortening will make the affirmed exclusion ruling effective without awaiting the ordinary rehearing period. Blue Cedar accepts that shortening will return the retaliation claim to the district court after vacatur of the judgment in its favor. Both parties state that they have no pending rehearing petition, do not plan to file one, and will not seek a stay before the requested June 22 issuance. Those representations are made to support the timing request.

The parties recognize that issuance of mandate does not add the late Wynn subject to the merits record, resolve liability, compel a trial date, or prevent the district court from addressing matters left open by the opinion. They also recognize that the court may deny the motion or select a different date. If relief is denied, the ordinary post-judgment schedule will continue to govern unless another qualifying filing or order intervenes. No party asks the clerk to act before a court order grants shortening and releases mandate.

Counterfactual Joint Motion to Shorten Mandate

Proposed administration and service

The parties request an order granting the motion, shortening the mandate date to June 22, 2026, and authorizing the clerk to release and issue mandate on that date. They propose that the clerk transmit the June 15 opinion and judgment to the United States District Court for the Eastern District of Virginia and serve electronic notice on appellate counsel. The parties will then contact the district clerk through the ordinary procedure for any case-management conference.

Counsel for Benton and counsel for Blue Cedar jointly certify filing and mutual electronic service on June 18, 2026. Counsel also certify that the requested relief is agreed and that no response period is needed unless the court directs otherwise. The motion relies only on the entered opinion, judgment, existing schedule, and the parties' stated intentions. It offers no new evidence, asks for no alteration of the appellate merits, and preserves the district court's authority to manage the remanded claim after mandate.